IN THE SUPREME COURT OF THE STATE OF IDAHO

Case No. 48784-2021

RECLAIM IDAHO, and the COMMITTEE TO PROTECT AND PRESERVE THE IDAHO CONSTITUTION, INC.,
Petitioners,

v.

LAWERENCE DENNEY, in his official capacity as the Idaho Secretary of State, and the STATE OF IDAHO,
Respondents.

VERIFIED PETITION FOR WRIT OF PROHIBITION AND APPLICATION FOR DECLARATORY JUDGMENT

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INTRODUCTION

Reclaim Idaho and the Committee to Protect and Preserve the Idaho Constitution bring this original action seeking a declaration that provisions of Idaho Code § 34-1805(2) and Idaho Code § 34-1813(2)(a), pertaining to initiatives and referendums, violate Article III, § 1 of the Idaho Constitution. They further seek a peremptory writ of prohibition from this Court prohibiting the Secretary of State or any other state official from enforcing these unconstitutional provisions.

JURISDICTION

1. The Court has "original jurisdiction to issue writs of mandamus, certiorari, prohibition, and habeas corpus, and all writs necessary or proper to the complete exercise of its appellate jurisdiction." Idaho Const., art. V, § 9; Idaho Code § 1203; Idaho Code § 7-402.

2. The Court exercises its original jurisdiction when petitioners have alleged sufficient facts concerning a possible constitutional violation of an urgent nature.

3. This Petition challenges the constitutionality of two Idaho statutory provisions that infringe on the people's constitutional right to initiate or repeal legislation, set out in Article III, § 1 of the Idaho Constitution.

4. The issue is one of statewide importance. Petitioners have no other adequate remedy at law, and the people need clarity from this Court as to the

constitutionality of these statutory provisions. The matter is urgent and calls for the Court's review.

PARTIES

5. Petitioner Reclaim Idaho is an Idaho based political action committee, registered with the Idaho Secretary of State. Reclaim Idaho is a grassroots organization designed to protect and improve the lives of working Idahoans. It advocates for candidates and initiatives that strengthen public schools, protect public lands, and extend healthcare to working families. Reclaim Idaho alleges a distinct and palpable injury that is fairly traceable to the new requirements in Idaho Code § 34-1805(2) and § 34-1813(2). It successfully qualified an initiative for the ballot in 2018 and is actively pursuing two initiatives for the 2022 election cycle. These new provisions unreasonably burden its ability to exercise its constitutional right under Article III, § 1. Reclaim Idaho is also pursuing this case on behalf of the people statewide to protect their fundamental constitutional right to the initiative and the referendum.

6. Petitioner Committee to Protect and Preserve the Idaho Constitution, Inc., is an Idaho non-profit corporation registered with the Idaho Secretary of State. The Committee's President is a former attorney general of Idaho, and its membership includes a former Secretary of State, and other distinguished Idaho jurists and

lawyers, who have formed to protect the Idaho Constitution from the legislature's attempts to weaken it. The Committee alleges a distinct and palpable injury that is fairly traceable to the requirements of Idaho Code § 34-1805(2). It is actively pursuing a referendum for the 2022 election cycle. The new statutory requirements unreasonably burden its ability to exercise its constitutional right under Article III, § 1. The Committee is also pursuing this case on behalf of the people statewide to protect their fundamental constitutional right to the initiative and the referendum.

7. Respondent Lawerence Denney is named is his official capacity as the duly elected Secretary of State of Idaho. Secretary Denney is the Chief Elections Officer in the state as set forth in Idaho Code § 34-201. It is his responsibility to obtain and maintain uniformity in the application, operation, and interpretation of the election laws. *Id.* Initiative or referendum petitions must be filed with the Secretary of State for his compliance review after county clerks have reviewed and verified signatures. Idaho Code §§ 34-1802, 1803. Pursuant to Idaho Code § 34-1807 county clerks prepare certificates for the Secretary of State indicating the number of signatures from each legislative district they have verified. Before placing them on the ballot, the Secretary of State has a duty to ensure that signatures supporting the petitions comply with the percentage and geographical distribution requirements set by Idaho Code in § 34-1805(2), now set at 6% of registered voters in each of Idaho's 35 legislative districts.

8. The state of Idaho is a separate sovereign and one of the fifty United States. It has an obligation to ensure that the people's rights in the Idaho Constitution are enforced.

FACTS COMMON TO ALL CLAIMS

History of the People's Right to Initiate and Repeal Laws

9. The people are the source of all political power in Idaho: "[a]ll political power is inherent in the people. Government is instituted for their equal protection and benefit, and they have the right to alter, reform or abolish the same whenever they may deem it necessary; and no special privileges or immunities shall ever be granted that may not be altered, revoked, or repealed by the legislature." Idaho Const., art. I, § 2.

10. In 1912, the people amended the Idaho Constitution to reserve for themselves the right to make law (the initiative) or to repeal law (the referendum). Idaho Const. art. III, § 1. This right is "independent of the legislature." *Id.*

11. The people conferred on the legislature a duty to enact reasonable "conditions" and a "manner" by which the right would be exercised without infringing upon it. *Id.*

12. This Court has held that the people's and the legislature's right to enact or repeal legislation stand on "equal footing." *Westerberg v. Andrus*, 114 Idaho

401, 404, 757 P.2d 664, 667 (1988) (citing *Luker v. Curtis*, 64 Idaho 703, 136 P.2d 978 (1943)).

13. Yet, almost immediately after the people reserved this right, the legislature attempted to use its limited power to enact procedures as a pretext to restrict the people's core right to make and repeal law.

14. In 1915, the legislature passed a bill that set the signature threshold at 15%, required signatures from each of all the counties in the State, and made it a crime for volunteers to carry petitions for signatures. The bill further required that petitions remain in the offices of state officials and be signed in the presence of a judge or other state official. *See* Exhibit 1, Declaration of Ben Ysursa, ¶ 15.

15. Governor Alexander vetoed the bill, stating that it would have been fatal to the people's constitutional right to use the initiative or referendum. He noted that no other state had such harsh restrictions. Ysursa Decl., ¶ 15.

16. For nearly two decades, the legislature simply chose not to enact any procedure by which the people could exercise their right, so it lay dormant.

17. In 1933, the legislature finally passed enabling legislation. The legislation required petitioners to get valid signatures of 10% of the number of voters in the preceding gubernatorial election. There was no requirement of geographical distribution of the signatures. Ysursa Decl., ¶ 16.

18. This remained the law for 64 years, from 1933 to 1997.

19. In 1984, the legislature tried again to make it harder to qualify petitions for the ballot. It passed a bill increasing the signature threshold from 10% to 20%. Governor Evans vetoed that bill, noting that if he had signed it, the initiative and referendum would be a "dead letter" in Idaho. Ysursa Decl., ¶ 17.

20. In 1994, the people approved an initiative setting term limits for legislators. The legislature responded by repealing the law and, in 1997, increasing the number of signatures needed. It did so through a sleight of hand: it decreased the percentage from 10% to 6%, but it pegged that percentage to the number of registered voters rather than based on the number of voters in the last general election. The total number of registered voters far exceeds the number of voters in the prior election. Exhibit 3, Declaration of Dr. Gary Moncrief, ¶ 6. Also, proponents must gather far more signatures than the bare 6%, as 30% or more of raw signatures collected might be rejected as invalid by the county clerks. Exhibit 2, Declaration of Luke Mayville, ¶ 14.

21. For the first time, the legislature also enacted a geographical distribution requirement. To qualify for the ballot, proponents now needed also to get the signatures of 6% of the registered voters in at least 22 of Idaho's 44 counties. 1997 Session Laws, ch. 266, sec. 5, p. 759.

22. The federal courts struck down the geographical distribution requirement on equal protection grounds because, as the population of the counties varied

widely, it diluted the vote in the more populous counties. *Idaho Coalition United for Bears v. Cenarrusa*, 342 F.3d 1073 (9th Cir. 2003).

23. For the next ten years, there was no geographical distribution requirement.

24. But in 2013, in response to successful referendums the previous year that had repealed education legislation (the "Luna Laws"), the legislature enacted a requirement that proponents must obtain valid signatures of 6% of the registered voters in at least 18 legislative districts. 2013 Idaho Session Laws, ch. 214, sec. 3, p. 504. That was in addition to receiving valid signatures totaling more than 6% of the registered voters statewide.

Reclaim Idaho's Difficult Yet Successful Initiative Campaign to Expand Medicaid in 2018, and the Legislature's Response

25. It was under that state of the law that Reclaim Idaho mounted what was possibility the largest grassroots campaign in Idaho's history to qualify an initiative expanding Medicaid coverage in Idaho. The initiative qualified for the ballot in 2018 and passed by a wide margin, enjoying urban, rural, conservative, and liberal support. Mayville Decl., ¶ 61.

26. Reclaim Idaho relied on passionate volunteers to canvass for the initiative. Those volunteers worked tirelessly, evenings and weekends, even in depths of winter. *See, e.g.*, Exhibit 6, Declaration of Karen Lansing, ¶ 6; Exhibit 7,

Declaration of Linda Larson, ¶¶ 4-5; Exhibit 8, Declaration of Jessica Mahuron, ¶ 4.

27. Still, it was exceedingly difficult to comply with the requirement to get valid signatures from 6% of the registered voters in 18 legislative districts. Mayville Decl., ¶¶ 22, 39; Mahuron Decl., ¶¶ 4-5.

28. Grassroots groups like the petitioners in this case typically have limited funds at their disposal. Mayville Decl., ¶ 21. The success of their campaigns will rise or fall on their ability to organize volunteers in enough legislative districts to meet the geographical distribution requirement by the deadlines in the statute. *Id.* at ¶ 17.

29. During the Medicaid expansion campaign, the leaders of Reclaim Idaho understood that they needed to prioritize their resources based on the organizational potential of the legislative districts. Mayville Decl., ¶ 17. The districts with the highest potential were those where Reclaim Idaho's founders and core volunteers lived or had a strong network of contacts from which they could recruit. *Id.* at ¶¶ 25-26. The districts with the lowest organizational potential were those in which contacts were limited. *Id.* at ¶ 42.

30. Reclaim Idaho had success in the districts that had high organizational potential. Mayville Decl., ¶¶ 26-28. Middle tier districts were harder. *Id.* at ¶ 36. And it needed to flood volunteers into a few districts with lower organizational

potential in the waning weeks before the deadline. *Id.* at ¶ 44. There was no time to spare.

31. Successfully qualifying an initiative or a referendum, then, is not necessarily a reflection of voter support in a district. It is instead a function of the organizational potential and organizational strength of the proponents in each district so that the support that otherwise may be latent there can be captured. Mayville Decl., ¶¶ 17-44.

32. After the Medicaid expansion became law, the legislature tried to tighten the screws yet again. In the 2019 session, it passed a bill that shortened the time in which to gather signatures and increased both the total percentage of signatures and the number of districts that were needed. Ysursa Decl., ¶ 18.

33. Governor Little vetoed the bill, expressing serious concern about its constitutionality. Ysursa Decl., ¶ 18.

34. In 2020, the legislature quietly amended Idaho Code § 34-1813(2)(a). That provision now prohibits any citizens' initiative from taking effect sooner than July 1 of the year following the general election. This gives the legislature an opportunity to repeal any initiated statute before the law has taken effect.

35. In 2021, the legislature passed Senate Bill 1110, which now requires signature gatherers to get valid signatures from at least 6% of registered voters in each of Idaho's 35 legislative districts.

36. It is the Secretary of State's obligation to enforce the statewide geographical distribution requirement after the county clerks have verified the signatures in support of a petition.

37. Governor Little signed Senate Bill 1110 into law, amending Idaho Code § 18-1805(2). In his signing statement, he invited the "Idaho judiciary" to address its constitutionality. See April 17, 2021 Letter from Bradley Little to Honorable Janice McGeachin, at https://tinyurl.com/ymkcbz6y.

38. Idaho now has the most restrictive conditions for proponents to qualify initiatives and referendums in the nation. Moncrief Decl., ¶ 7; Exhibit 4, Declaration of David Daley, ¶ 9.

An Excessive and Unreasonable Burden on the Right

39. Reclaim Idaho has begun two initiative drives for the 2022 election cycle. It filed one on April 7, 2021, called the "Initiative Rights Act," in which it seeks to put to the voters whether to eliminate the geographical distribution requirement in Idaho Code § 18-1805(2). Mayville Decl., ¶ 6. It filed the second initiative on April 28, 2021, called the "Quality Education Act," in which it seeks to place on the ballot an initiative that would increase funding for K-12 education in Idaho. *Id.* at ¶ 7.

40. It is actively pursuing these initiatives and is moving forward with a signature drive and campaign. The office of the Idaho Attorney General informed Reclaim Idaho on April 29th, 2021 that the Initiative Rights Act will not be "grandfathered in" under the old signature requirements, and that it will be required to collect valid signatures from 6% of registered voters in all 35 legislative districts in order to qualify the Initiative Rights Act for the ballot. Mayville Decl., ¶ 6.

41. The Committee to Protect and Preserve the Idaho Constitution has filed a referendum to repeal SB1110 and is waiting for the Attorney General's certificate of review.

42. If the law stands, neither Reclaim Idaho nor the Committee will be able to qualify their petitions for the ballot, even with extraordinary effort, because it is not possible for grassroots organizations like theirs to meet the current geographical distribution requirement. Mayville Decl., ¶¶ 45, 51.

43. With volunteer-driven campaigns, each additional district is progressively more difficult to qualify because districts vary widely as to their potential for acquiring organizational strength over the course of a signature drive. Mayville Decl., ¶ 18.

44. If Senate Bill 1110 had been in effect in 2018, Reclaim Idaho would not have been able to qualify Medicaid expansion, despite that initiative eventually

passing with approximately 60% of the popular vote statewide. Mayville Decl., ¶ 45.

45. It could not have met the geographical distribution requirement because it would have needed to qualify 15 additional districts where it lacked the organizational strength to canvass and get the signatures needed. Mayville Decl., ¶ 44. This would be true even though its initiative likely had the requisite voter support in those districts.

46. Therefore, even when an initiative or referendum will have broad popular support across the state, volunteer and grassroots groups, like the petitioners before the Court, simply cannot muster the organizational strength needed in every single legislative district to meet the 6% percent threshold.

47. This burden is particularly acute on proponents of referendums, like the Committee to Protect and Preserve the Idaho Constitution, which must acquire all valid signatures within 60 days rather than the 18 months that initiative proponents have. *Compare* Idaho Code § 34-1802(1) and § 34-1803.

48. It is impossible to comply with a 35-district requirement within 60 days.

49. The only referendums to qualify for the ballot in the last 19 years were the propositions that repealed the "Luna Laws," and there was no geographical distribution requirement at that time. Ysursa Decl., ¶ 12.

50. One of the leaders of that immensely popular referendum drive offers testimony here that if the current law were in effect, the all-district requirement would have been "overly burdensome" and it would not have been possible to qualify the Luna Laws referendums for the ballot. Exhibit 5, Declaration of Robin Nettinga, ¶ 31.

51. By requiring the unanimity of districts, the legislature has burdened the people's right in yet another way. It has created an opportunity for voters in any one legislative district to hold a veto over petitions that are otherwise popularly supported throughout the state. Daley Decl., ¶ 17.

52. A tiny sliver of voters are empowered to thwart the will of a majority in contradiction of basic republican principles of majority rule.

53. It further creates an opportunity for well-financed opponents to focus their anti-petition campaigns in one legislative district while proponents must compete in all 35 districts. Ysursa Decl., ¶23; Daley Decl., 17.

54. The legislature has also made it easier to remove signatures by empowering voters who have signed a petition to remove their signatures through a simple email to the county clerk. Idaho Code § 34-1803B(2); Daley Decl., ¶ 16. Electronic signature gathering, however, is explicitly prohibited. Idaho Code § 34-1807(5). All signatories in support of a petition must physically sign a

petition in the presence of a collector and their signatures must be verified by a county clerk. Idaho Code § 34-1807.

55. Based on Luke Mayville's experience in organizing a successful initiative drive under the previous standard, he testifies that "[i]t is beyond unreasonable to expect a volunteer-driven signature drive with limited financial resources to collect valid signatures from at least registered voters in each of 35 districts, including those districts with very little organizational potential." Mayville Decl., ¶ 51.

56. According to Professor Moncrief, "Senate Bill 1110 destroys an essential right of the citizens of Idaho," and it "will make the popular referendum virtually obsolete because it will make it almost impossible to qualify for the ballot." Moncrief Decl., ¶¶ 8, 12.

57. Former Secretary of State Ben Ysursa testifies that Senate Bill 1110 "makes the likelihood that voters will consider, discuss and vote on initiatives and referendums very remote, as these near impossible requirements will prevent any initiatives or referendums from qualifying for the ballot." Ysursa Decl., ¶ 21.

CLAIMS FOR RELIEF

I. The requirement in Idaho Code § 34-1805(2) that initiative and referendum proponents must first get valid signatures of 6% of registered voters in all 35 of Idaho's legislative districts to qualify a petition for the ballot violates Article III, § 1 of the Idaho Constitution.

58. Petitioners incorporate the preceding paragraphs.

59. The legislature has exceeded its limited procedural power to enact reasonable conditions and the manner by which the people can exercise their fundamental right to make or repeal law enshrined in Article III, § 1.

60. By passing Senate Bill 1110, now codified as Idaho Code § 34-1805(2), the legislature has effectively taken away the people's right to make or repeal law.

61. Demanding that petitioners qualify all 35 legislative districts is not necessary to serve a purported state interest in requiring a modicum of diverse geographical support.

62. Demanding petitioners to qualify all 35 legislative districts is not narrowly tailored to serve a purported state interest in requiring a modicum of diverse geographical support.

63. The all-district requirement imposes an excessive burden on the people's right to make or repeal law under Article III, § 1.

64. The all-district requirement is unreasonable.

65. The all-district requirement renders the people's right to make and repeal law unworkable.

66. The chapter in the Idaho Code governing initiatives and referendums contains a severability clause: "In the event that any part of chapter 18, title 34, Idaho Code, shall for any reason be determined void or unenforceable in any part thereof, the remainder thereof shall remain in full force and effect." Idaho Code § 34-1823.

67. As a remedy, the Court should declare that the following phrase in Idaho Code § 34-1805(2) is unconstitutional and cannot be enforced: "in each of the thirty-five (35) legislative districts."

68. The Court should declare that Idaho Code 34-1805(2) is otherwise constitutional and enforceable when read with the unconstitutional portion stricken, as follows: "Before such petitions shall be entitled to final filing and consideration by the secretary of state, there shall be affixed thereto the signatures of legal voters equal in number to not less than six percent (6%) of the qualified electors at the time of the last general election."

II. The requirement in Idaho Code § 34-1813(2)(a) that no initiative may take effect before July 1 of the year following its passage violates Article III, § 1 of the Idaho Constitution.

69. Petitioners incorporate the preceding paragraphs.

70. The people's right to make law by initiative is "independent of the legislature." Idaho Const., art. III, § 1.

71. The right of the legislature and the people to make law stands on "equal footing."

72. The legislature has no authority to restrict when the people may choose an initiative that has become law to take effect.

73. The people retain the right to determine the urgency of the laws passed by initiative.

74. By dictating an effective date for any law passed by initiative, the legislature has exceeded its limited procedural power to enact reasonable conditions and the manner by which the people can exercise their Article III, § 1 constitutional right.

75. The Court should declare Idaho Code § 34-1813(2) unconstitutional and unenforceable.

PRAYER FOR RELIEF

Petitioners respectfully request that this Court:

(a) Declare that the requirement of Idaho Code § 34-1805(2) that initiative and referendum petitions must be supported by the valid signatures of 6% of the

registered voters in each of Idaho's 35 legislative districts is an unconstitutional restriction on the people's right under Article III, § 1.

(b) Declare that Idaho Code § 34-1805(2) is constitutional and enforceable only to the extent that it reads: "Before such petitions shall be entitled to final filing and consideration by the secretary of state, there shall be affixed thereto the signatures of legal voters equal in number to not less than six percent (6%) of the qualified electors at the time of the last general election."

(c) Declare that the prohibition in Idaho Code § 34-1813(2) on an effective date for legislation passed by initiative before July 1 of the year following its passage is an unconstitutional restriction on the people's right under Article III, § 1.

(d) Issue a peremptory writ of prohibition to the Idaho Secretary of State permanently and absolutely prohibiting him from enforcing the requirement in Idaho Code § 34-1805(2) that initiative and referendum petitions be supported by 6% of the registered voters in each of Idaho's 35 legislative districts.

(e) For a show cause or other hearing as the Court may require pursuant to Idaho Appellate Rule 5(d).

(f) For an award of attorney fees and costs of this action pursuant the private attorney general doctrine, Idaho Code § 12-117, § 12-121, or as otherwise provided by law.

(g) Any other relief that the Court deems just and equitable under the circumstances.

The exhibits cited in this petition (Exhibits 1 through 8, the declarations of Ben Ysursa, Luke Mayville, Dr. Gary Moncrief, David Daley, Robin Nettinga, Karen Lansing, Linda Larson and Jessica Mahuron) are attached to the filed petition and are not reproduced here.

Filed on this 7th day of May, 2021.

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